

Pankaj Mukhopadhyay ☆☆☆☆☆
C100, Suncity, Sector 54, Gurgaon, Haryana, India,
pankaj.hhh@claimcharts.info,
+91-880-091-0749,
http://claimcharts.info/pankaj__hhh,

Conversant CJ

Report of Evidence of Use

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Patent Number: US7953416B2

Claim Number: (1

52. A process for dynamic routing of customer contacts to service providers via a telephone, comprising the steps of: establishing accounts for a plurality of service providers that provide non-telephonic -based services; permitting the plurality of service providers to bid against one another for a live telephone call based on a customer per-contact charge; creating a contact list comprised of the service providers ranked from the highest bidder service provider to the lowest bidder service provider; receiving a live telephone contact from a customer; routing the live telephone contact from the customer for a live conversation with the highest ranked bidder service provider on the contact list; and charging the service provider account receiving the live telephone contact the customer per-contact amount bid by the service provider.

Element 1:

52. A process for dynamic routing of customer contacts to service providers via a telephone, comprising the steps of:

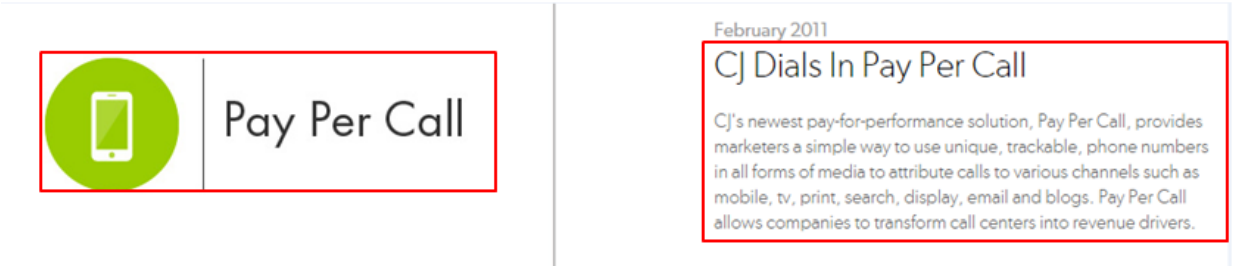
CJ Affiliate by Conversant launched their pay per call program in February, 2011.Using CJ's pay per call solution, provides marketers a simple way to use unique, trackable, phone numbers in all forms of media to attribute calls to various channels such as mobile, tv, print, search, display, email and blogs. Most of the Pay Per Call program uses dynamic call routing technologies.

Please note that customers contact is routed dynamically using dynamic ad placement strategies, but a customer's call is not routed dynamically. Hence, we have considered, a customer's information/service requirement as a customer contact, and not the call made by a customer.

Ref 1: http://www.cj.com/about-cj

Ref 2: http://www.cj.com/publisher

Supporting Evidence:



Element 2:

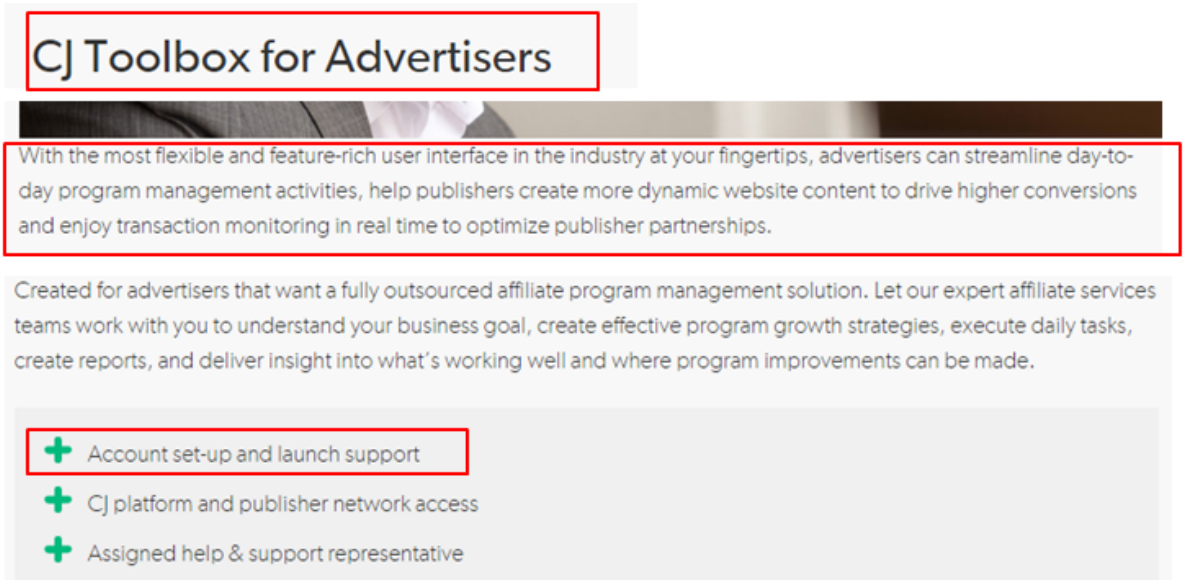
establishing accounts for a plurality of service providers that provide non-telephonic -based services;

The first step of an advertiser is to start an online account with CJ Affiliate. Using this account, an advertiser can access the advertiser dashboard provided by CJ Affiliate. The advertiser can be any service provider for a non-telephonic service.

Ref 1: http://www.cj.com/advertiser/full-program-management

Ref 2: http://www.cj.com/advertiser/advertiser-tools

Supporting Evidence:



Element 3:

permitting the plurality of service providers to bid against one another for a live telephone call based on a customer per-contact charge;

CJ's pay per call program provides advertiser's to bid for receiving ads from CJ's publishers. CJ Affiliate's call tracking enables advertisers to monitor the results of every aspect of phone-centered marketing efforts, allowing the advertisers to determine the best way to utilise their marketing budget. Using which they can bid for keywords specific for their pay per call ads.

Ref 1: http://www.cj.com/advertiser/pay-per-call

Supporting Evidence:

CJ Affiliate's call tracking enables you to monitor the results of every aspect of your phone-centered marketing efforts, allowing you to determine the best way to utilize your marketing dollars.

Enhanced Features

- IVR technology gives you the ability to create custom automated menus. We record your customers' actions, giving you behavioral insights.
- Search keyword tracking allows you to track calls back to a specific search engine and keyword. You learn on a per-call basis which keywords are doing well or are underperforming, so you can adjust bids.
- Custom call treatments enable you to track and handle calls based on time of day, callers' geographic locations, and IVR key presses.

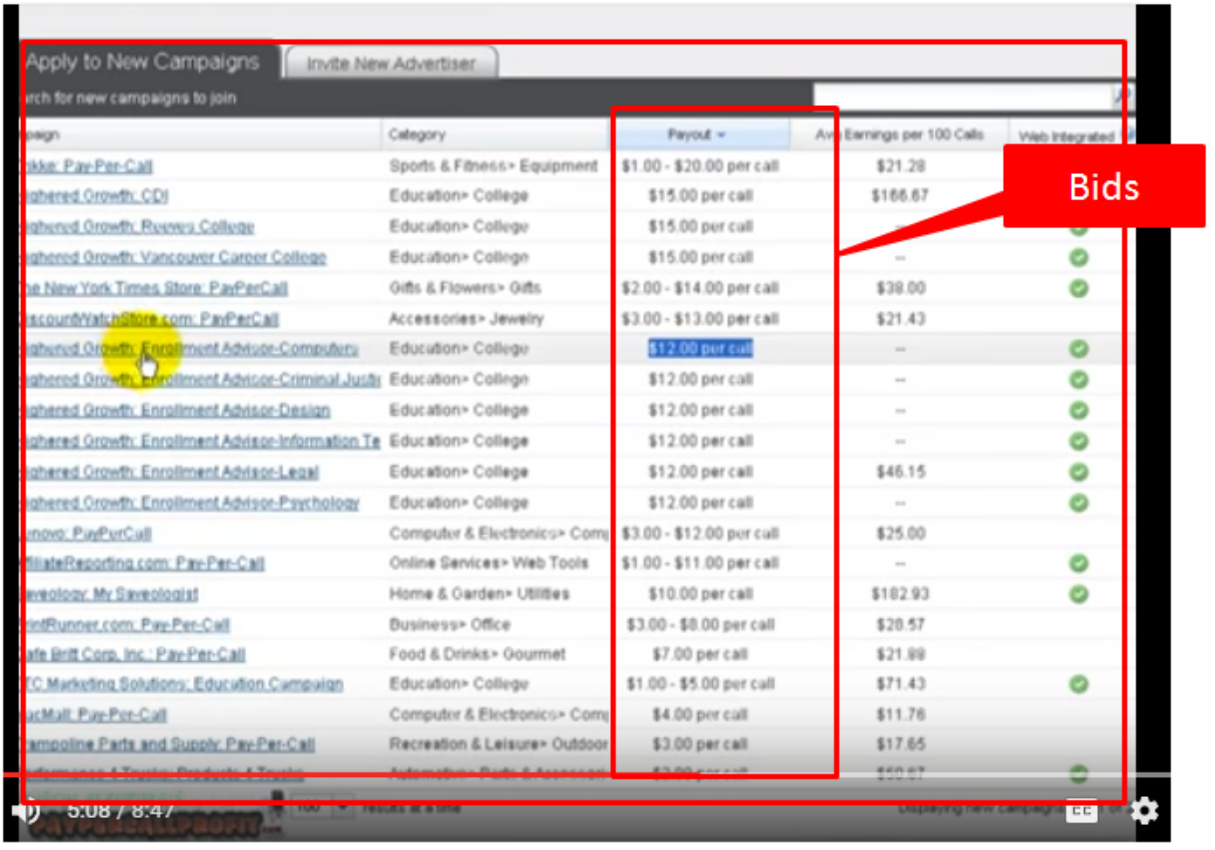
Element 4:

creating a contact list comprised of the service providers ranked from the highest bidder service provider to the lowest bidder service provider;

CJ's dashboard for publishers provides details of the advertisers along with their payment plan and bid. This list contains all the advertisers catering to a different categories and hence, it can be assumed that a list of all the advertisers along with their bids(what they want to pay per call and under what conditions). The reference shows a snapshot of a publisher's dashboard.

Ref 1: https://www.youtube.com/watch?v=wDURm-bPZMY

Supporting Evidence:



Element 5:

receiving a live telephone contact from a customer;

CJ provides advertiser with a unique trackable number which is provided to the customers. When a customer calls for an ad, it is usually the trackable number to which the call goes to and from then it gets routed to the service provider.

Ref 1: http://www.cj.com/system/files/paypercall_advertiser_1_sheet_012816.pdf

Ref 2: http://www.cj.com/advertiser/pay-per-call

Supporting Evidence:

SET-UP & PROMOTION

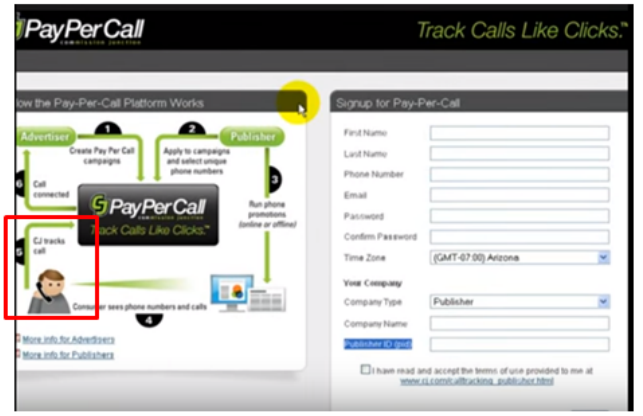
Work with CJ's Pay Per Call team to set commission rates and requirements for what constitutes a quality call, and then let your hand-selected publishers promote your products and services across multiple channels via unique toll-free phone numbers.

QUALIFYING & TRACKING

Consumers across the web see your ad and dial the toll-free numbers within your joined publishers' promotions. All publisher referred calls are tracked by CJ according to your campaign settings.

SALES & REVENUE

Qualified calls are forwarded to your call center for consultation or sale. CJ processes and handles publishers' payments, allowing you to focus on your business and customer service.



Element 6:

routing the live telephone contact from the customer for a live conversation with the highest ranked bidder service provider on the contact list; and

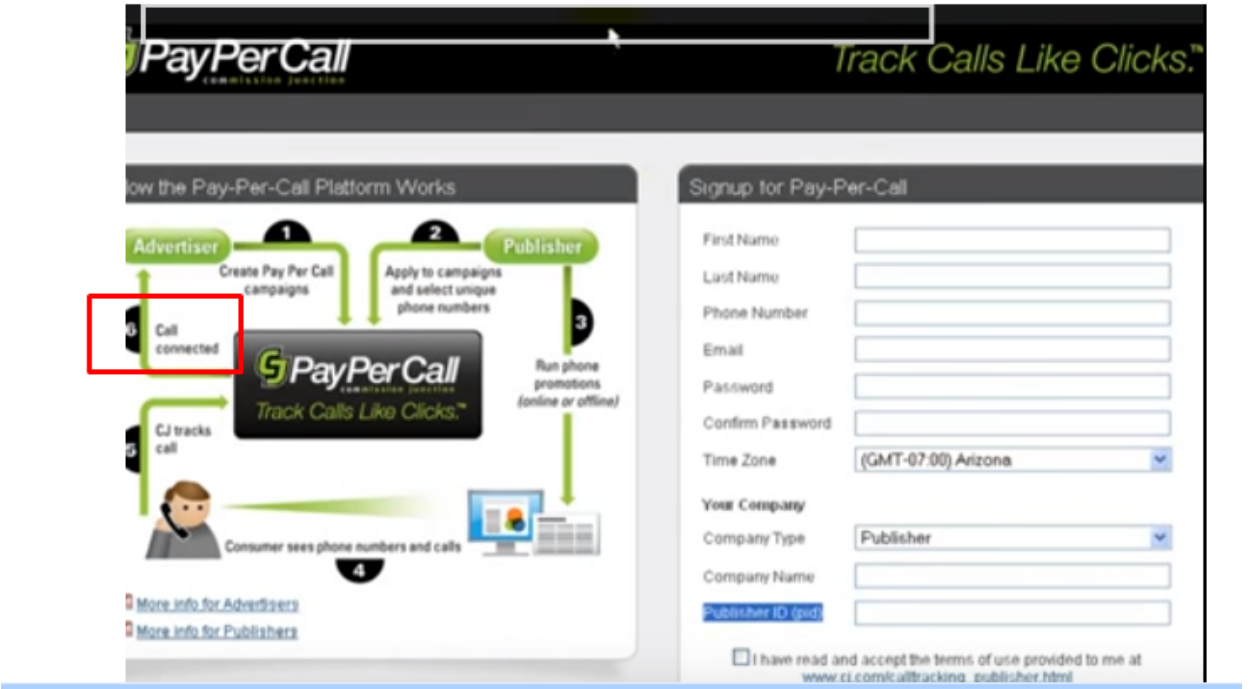
CJ pay per call system uses a unique tracking number. The customer calls on that number which gets forwarded to the service provider's business call center. Also, since, it is an affiliate network, the ads with the most profitable bid for the publishers gets featured for the pay per call ads along with the CJ tracking number. Hence, a call made to the unique CJ tracking number will be automatically directed towards the service provider with the highest bid for placing that ad.

Ref 1: http://www.cj.com/advertiser/pay-per-call

Supporting Evidence:

Tracking Abilities

- You have on-demand access to an unlimited number of unique, trackable, toll-free numbers for your variou marketing efforts.
- As calls are forwarded to your call center, we can tell you, in real time, which numbers were used, and whi placements generated each call.



Element 7:

charging the service provider account receiving the live telephone contact the customer per-contact amount bid by the service provider.

CJ provides an option of pay per performance or cost per action. It is an indication that advertisers select what they want to pay(bids) and under what conditions. Hence, if an advertiser wants to pay whenever he receives a call via CJ's publishers, then the bid amount will be charged to the advertiser(service provider).

Ref 1: http://www.cj.com/advertiser/pay-performance

Supporting Evidence:

Affiliate marketing is based largely on Cost Per Action (CPA), a performance-based pricing model, where advertisers only pay when a specified action has been completed (e.g. a purchase, form submission, hotel booking, printed coupon, app download). That's why affiliate marketing can achieve such a high ROI – a low risk, high value pricing model at its core.

We believe in creating equitable partnerships between advertisers and publishers and aligning incentives to achieve powerful results. With more than a decade of experience in affiliate marketing, we are experts at helping advertisers reach more potential customers, increase sales and drive meaningful results on pay for performance-based pricing models.

- Experts in pay for performance marketing
- All major performance-based pricing models
- Last Click and View-Through tracking capabilities
- Revenue-share and flat rate commissions

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End of Report

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Evaluation Code: MzNAMTI1QENvbnZlcnNhbnRAQ0pANjM=

We are available to answer follow up questions, provide clarifications and search for additional materials upon request. For public contact - please refer to our profile at ClaimCharts.info. For private contact - please call/email us.

Our hourly rate is: $

Non-Disclosure Agreement:

We understand that for the purpose of assisting you in collecting data, you may disclose to us certain confidential information that you want to keep confidential; therefore, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, we agree as follows:

1. For a period of twelve (36) months from the date we receive your confidential information ("Effective Date"), we will not use or disclose the information, except: (a) in the event that such information (i) comes into the public domain not through us; (ii) is already known to us at the time of disclosure; (iii) is lawfully otherwise learnt or independently developed by us; or (iv) is required to be disclosed by law.

2. Since a breach of our obligations hereunder may result in irreparable harm to you, we agree that upon such breach or threat thereof, you shall be entitled to specific performance and other injunctive relief without posting a bond, and in the event of disclosures required by court order, we shall promptly notify you of the proceeding.

3. This agreement supersedes all prior discussions and writings and constitutes the entire agreement between you and us with respect to the subject matter hereof. This Agreement shall be binding upon the successors and assigns of the respective parties, and may not be modified except by an instrument executed by both parties.

Pankaj Mukhopadhyay